

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 19, Honorable Theodore C. Zayner Presiding

Maggie Castellon, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: 408.882.2310

To contest the ruling, call (408) 808-6856 before 4:00 P.M. or email department19@scscourt.org. Please state your case name, case number, the name of the attorney and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested. Please also make sure you have notified the other side in a timely fashion that you are contesting the tentative ruling. (See R. Ct. 3.1308(a)(1); Local Rule 8.E.)

Court Reporters are not provided. Please consult our Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through Microsoft Teams, unless otherwise arranged with the Court. Please go to https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.
- If any party wants a Court Reporter, the appropriate form must be submitted. The Reporter can appear in person or remotely.
- Members of the public who wish to observe can do so through Microsoft Teams (using the link discussed above) or in person. Please make sure to turn your camera off and mute yourself if you are observing the proceedings remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while on Microsoft Teams.

LAW AND MOTION TENTATIVE RULINGS

DATE: 3/26/25

TIME: 1:30 P.M.

PREVAILING PARTY SHALL PREPARE THE ORDER

UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV365252	Flores v. ACCO Engineered Systems, Inc. (Included in Acco Wage and Hour Cases, JCCP5172, Santa Clara)	Off Calendar per moving party.
LINE 2	20CV371934	Manalo v. San Jose, LLC, et al. (Class Action)	Continued per Stipulation and Order to September 24.
LINE 3	22CV393492	Perez v. Best Overnite Express, Inc. (Class Action)	See Line 3 for tentative ruling.
LINE 4	22CV396462	Long v. Juniper Networks (US), Inc. (Class Action/PAGA)	See Line 4 for tentative ruling.
LINE 5	22CV401365	Hathaway v. Alliance Roofing Company, Inc. (Class Action) (Lead Case; Consolidated with Case No. 22CV407856]	See Line 5 for tentative ruling.
LINE 6	22CV407883	Sanders v. 360 Degree Customer, Inc. (Class Action)	See Line 6 for tentative ruling.

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LAW AND MOTION TENTATIVE RULINGS

LINE 7	22CV407922	Topete v. Claire's Boutiques, Inc., et al. (PAGA)	See Line 7 for tentative ruling.
LINE 8			
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			

Calendar Line 1

Case Name:

Case No.:

- oo0oo -

Calendar Line 2

Case Name:

Case No.:

- oo0oo -

Calendar Line 3

Case Name: Perez v. Best Overnite Express, Inc. (Class Action)
Case No.: 22CV393492

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on March 26, 2025, at 1:30 p.m. in Department 19. The court now issues its tentative ruling as follows:

I. INTRODUCTION

This is a putative class and Private Attorneys General Act (“PAGA”) action arising out of various alleged wage and hour violations. On January 20, 2022, plaintiff Baltazar Perez (“Plaintiff”) began this action by filing a class action complaint against defendant Best Overnite Express, Inc. (“Defendant”). On April 12, 2022, Plaintiff filed the operative first amended class action complaint against Defendant, asserting the following causes of action: (1) failure to pay minimum wages; (2) failure to reimburse business expenses; (3) failure to provide accurate itemized wage statements; (4) failure to pay all wages due upon separation of employment; (5) violation of Business and Professions Code section 17200 *et seq.*; and (6) enforcement of Labor Code section 2698, *et seq.* (the Private Attorneys General Act [“PAGA”]).

On July 26, 2024, the court issued an order granting Plaintiff’s unopposed motion for preliminary approval of the settlement and setting a final approval hearing for January 22, 2025. On December 6, 2024, the court issued an order on the parties stipulation, continuing the final approval hearing to March 26, 2025. Now before the court is Plaintiff’s motion for final approval of the settlement, and the motion is unopposed.

II. LEGAL STANDARD FOR SETTLEMENT AGREEMENTS

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and